

Jai Pal Singh v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 7 January 2020 · WRIT - C No. 41079 of 2019 · **Writ disposed; relegated to Clause 6.5; recovery stayed six weeks.**

HEADNOTE

A writ seeking to quash a recovery certificate and restrain coercive recovery is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a statutory alternative remedy. The consumer may approach the concerned authority for decision in accordance with law; the Court expresses no opinion on merits. The recovery certificate was kept in abeyance for six weeks.

FACTUAL SUMMARY

Jai Pal Singh challenged a recovery certificate dated 30 May 2019 issued by the electricity authorities, seeking certiorari to quash it and mandamus restraining coercive recovery. After two listings at which the department was given time to take instructions and coercive action was stayed, the Division Bench heard the petition. Counsel for the Electricity Department submitted that an alternative statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005 was available. The petitioner did not rebut that submission.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative-remedy-recovery-certificate

HOLDING

A writ challenging a recovery certificate is not entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory alternative remedy. The petitioner may approach the concerned authority within two weeks for decision within four weeks in accordance with law; the recovery remains in abeyance for six weeks. The Court expressed no opinion on merits. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy The Division Bench refused to entertain the writ because Clause 6.5 of the Supply Code is an available statutory remedy for the grievance against the recovery certificate. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CERTIFICATE DATED 30.05.2019 AND OF THE UNDERLYING BILLING GRIEVANCE

The Court expressly declined to opine on merits and directed the authority to consider the matter on its own merits. ¶ 1